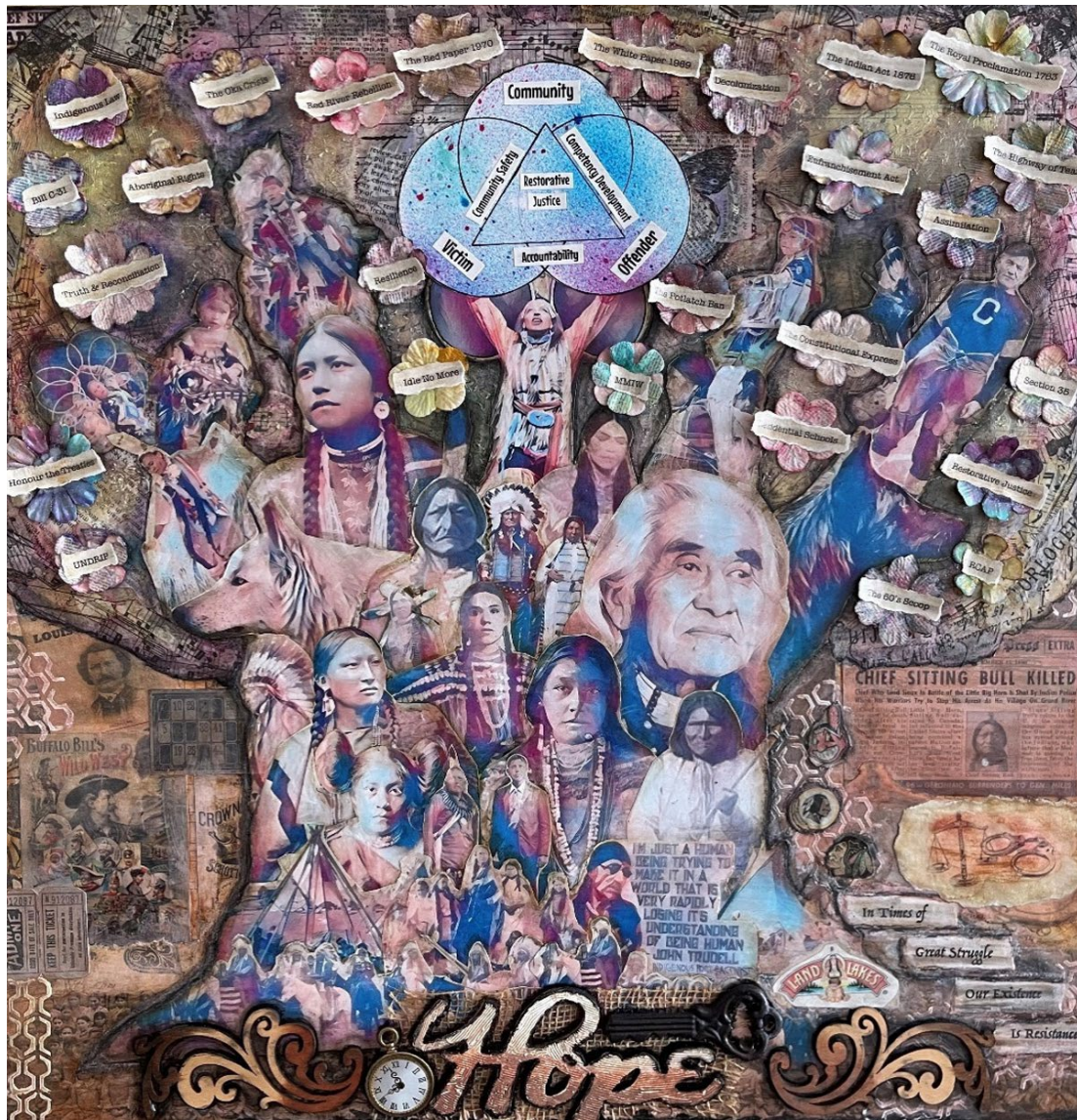


## Mixed Media



### Artwork Specifications:

24 X 24 Mixed Media Canvas depicting an Aboriginal approach to restorative justice  
The Title:

The name for this piece was inspired by the writings of Professor Michael Jackson in his book titled "Justice Behind Bars" and the stories he shared about prisoner's rights. It was through the class readings and presentations that I learned about prisoner's rights and the important role future lawyers play in ensuring that the basic human rights of all people, whether they are incarcerated or not, are protected.

A recurring theme throughout the course was the lack of focus placed on rehabilitation and restorative justice programs once a citizen has been found guilty of a crime. Repeatedly, we heard stories about Canada's approach to corrections and more often than not, I found myself questioning the meaning behind the term "corrections" and what the term is meant to imply. If Canada is in the business of "correcting" undesirable behaviour, why is there such a focus on punishment instead of rehabilitation? How does the poor treatment of prisoners serve the interests of the prisoners or society at large? Surely, if we expect people to change, we cannot expect them to do so if we choose to dehumanize them and threaten them in exploitative and shameful ways. Yet, that is exactly how Canada currently treats our ever increasing prison population, a disproportionate number of which are Aboriginal people. Once a person has been found guilty of a crime, we lock them up and literally throw away the key. We do very little to encourage them to develop skills and coping mechanisms that will make their re-entry into society easier and that is where we are failing not only the prisoners, but society in general. Thus, I chose to create a piece of artwork that visually represents the role restorative justice plays in the rehabilitation of prisoners from an Aboriginal perspective.

The Inspiration :

Perhaps my most memorable and eye-opening experience as a student of this course was our visit to Matsqui Prison. The visit alone made taking the class one of the most educational and memorable moments I have experienced throughout my three years of law school. The visit humanized the content of the course for me and opened my eyes to the reality of people we as a society would rather forget. Listening to and speaking with the prisoners taught me not only that most of them are regular everyday people, but that we should care about their human rights because most of them will be released and as one man said, "law students should care about prisoner rights because they may be our neighbours one day." Similar to our class discussions, we heard from the prisoners that the issues surrounding the treatment of the prison population and the lack of focus on rehabilitation are very real issues that must be addressed if we have any hope of decreasing the current incarceration rates. These issues were reinforced for me before we even entered the prison that evening by the guard at the front gate. I arrived a full hour before the rest of the class and during that time, I had the opportunity to observe as visitors came and went and to speak with the guard responsible for checking visitors in and out. I can't say that I was surprised by the guard's attitude as I have worked with young offenders in the

past and the guard's attitude toward the prisoners was frighteningly similar to the attitudes of the probation officers encountered as a teacher and mentor of incarcerated youth during my teaching career.

The guard broke the ice by asking me why I chose to take a course about prisoner's rights and if I was "an advocate like Professor Jackson". I didn't fully understand his question and asked him to elaborate. He told me that I may not be such an advocate for prisoner's rights if I had access to their files like he does. He explained that he had been a corrections officer for almost 25 years and if I could read some of the files and learn about the terrible things that the prisoners I was about to meet had done, I would not be so quick to advocate on their behalf. As a visitor to the prison, I chose not to antagonize him by starting an argument, so I explained to him that I was not a naive law student, that I was a certified high school teacher who had worked very closely with incarcerated youth prior to law school. I told him that I chose not to read the files my student's probation officers offered to me because I did not want to judge them before I even had an opportunity to meet them. Similarly, I preferred to enter the prison that evening without any knowledge of the crimes committed by the men I was about to meet because those stories belonged to them and it was up to them to decide if they wanted to share their stories with me. In response to his question about whether I was an advocate like my professor, I explained to him that I came to law school an advocate of human rights and that human rights belong to everyone, even prisoners and although I could fully appreciate that some of the men I was about to meet were capable of committing the most heinous acts, they were human beings nonetheless and deserved to be treated with dignity. Fortunately for me or maybe him, the rest of the class arrived before he could answer as I predict that our conversation was about to take a turn down a road that probably would have resulted in an argument and I would have missed out on the entire visit.

My point in sharing this story is that it inspired me to create a piece of artwork based on the concepts of restorative justice because it was clear to me that incarceration does not get to the root of the problems that caused the offender to commit their crimes to begin with. This encounter, coupled with the stories shared by the prisoners we met that night showed me how "corrections" cannot simply be about punishment. The act of punishing a wrongdoer alone does not address the harm caused by the offender or alleviate the pain experienced by the victim and the victim's family.

### **Why Restorative Justice?**

The Aboriginal peoples of Canada have practiced restorative justice in one form or another since time immemorial and recently, such an approach to justice has proven to be successful in helping victims to heal and offenders to be rehabilitated. The success of such an approach can be traced back to its underlying values and principles. Unlike the "you do the crime, you do the time" approach to punishment, restorative justice seeks to address all of the underlying issues that caused the event

to occur in the first place. In this way, the entire community is held responsible for addressing and resolving the problem. Crimes are not viewed as solely the responsibility of the individual who committed the crime. Rather, the individual is understood to be a member of the larger community and although they are required to take accountability for their actions, they are provided the support and resources necessary to atone for their past mistakes. Similarly, the victim and the victim's family is provided the support and resources necessary to heal from the trauma caused to them by the offender and to restore balance within the community. For example, this past summer in my home community a video surfaced on the internet depicting a gang beating of a teenage girl. My late mother was the elected Chief of my community at the time and was asked by the victim's family to be their advocate because the RCMP refused to lay charges on the girls who had attacked their daughter. My mother was a fair minded person who believed in Gitksan approaches to justice and was able to convince the families of the teen girls to come together for a cleansing ceremony and healing circle with local elders to address the problem. It was discovered during the ceremony that the girls were actually all friends and that the fight occurred over a bottle of alcohol. To make a long story short, it was discovered that day that the girl responsible for the beating had experienced a great deal of loss in her life recently and had turned to alcohol to solve her problems. She was jealous of the victim and chose to take her frustrations out on her instead of asking for help. By the close of the circle, the victim and her family chose not to press charges on the condition that the offenders would seek counselling and at the next feast accept responsibility for the harm they had caused to the victim and her family. It was also acknowledged that the adults of our community needed to do a much better job supervising our children and addressing the underlying issues that manifest as violent outbursts. Had my mother not been successful in encouraging the families to participate in a restorative justice process, it is likely that charges would have been laid against the offenders instead of getting them the help they so desperately needed, which would have inevitably led to future offences and eventual incarceration.

While it is easy to recognize how restorative justice may work in small Aboriginal communities, it is not as easy to understand how such an approach would be translated behind bars once a person has already been incarcerated. That said, having taken this course and after speaking with some of the prisoners at Matsqui, I am convinced that restorative justice behind bars is not only possible, but necessary. I believe that if we are to decrease incarceration rates and increase rehabilitation rates, we must change the way we view crimes and punishment. We must do a better job as a society of addressing the root causes of the problems that lead the most marginalized and disenfranchised people to commit crimes in the first place.

### **Description of Artwork**

As stated previously, this mixed-media canvas is a visual depiction of restorative justice from an Aboriginal perspective. Every image and element on the canvas was carefully chosen and placed with a purpose in mind.

The Tree of Life:

The image of a tree holds special significance in many Aboriginal cultures. I chose to use a tree to represent the strength and potential of humankind. Like a tree we all have roots, we all come from somewhere and we all have the potential to grow into something mighty and powerful or to wither and die if we are not properly cared for and nurtured. Like a tree, even under the most adverse circumstances, human beings have the capacity to fight for their survival. Like a tree we all aspire to be something greater but can be sidetracked or held back by other circumstances. Perhaps the soil that nourishes our roots become toxic because of the people we choose to surround ourselves with or someone who cannot appreciate our beauty decides one day to attempt to cut us down. When things like that occur, we can choose to be a victim of our circumstance or we can choose to rise above and spread our branches as high into the sky as we can.

#### Photographs:

The photographs that constitute the tree of life were chosen to represent the strength, the spirit and will to survive. Some of the photographs are of famous Aboriginal leaders and heroes and some are of contemporary Aboriginal peoples who have made it their mission to continue their traditions despite all of the attempts to assimilate them. The photographs are a reminder that we all come from proud histories and that we exist today because our ancestors were strong enough to fight for their right to exist.

Barely visible as the soil that surrounds the tree are images of Aboriginal children white attending residential schools, some of the earliest prisons occupied by the Aboriginal population. These images were used as a reminder that the problems we are attempting to address today were created by deliberate attempts to assimilate the Aboriginal peoples of Canada and that the terrible legacy of residential schools is still a contributing factor in the overrepresentation of Aboriginal peoples in prisons.

The black wolf and the white wolf represent the inner struggle that exists within each of us. The white wolf is full of love and goodness, while the black wolf is full of anger and rage. Our lives are a series of choices and in this case, the wolf we choose to feed will determine the course our lives will take.

The images of cultural appropriation and the wanted posters that surround the tree represent the discrimination and marginalization endured by Aboriginal peoples and how in our darkest hours, our existence is a form of resistance in and of itself.

The female hoop dancer in the middle of the tree holding up the restorative justice rings represents the nurturing spirit. Like mother earth, she is supporting the restorative justice structure with the support of all of the people who came before her. She is a reminder that it is never too late to choose a different path and atone for your past mistakes.

#### Embellishments:

The three-dimensional elements included on the canvas represent restorative

justice's potential. The wooden "Hope" is self-explanatory, simply put, restorative justice inspires hope for the offender that they can change and hope for the victim that things will get better.

The pocket watch represents time, perhaps the most precious possession a human being has. We are all born and we will all die, what we do with the time in between will determine the course of our lives. Time also represents the time prisoners spend while incarcerated.

The antique key represents the power that restorative justice has to free us from our prisons, both literally and figuratively. The key is always within reach if we are willing to do the work required to possess it.

The flowers and the words found within the branches of the tree represent the good and the bad things that have gotten us to where we are today. Discriminatory government actions, deliberate attempts to assimilate Aboriginal peoples, and historical events that are typically viewed as terrible moments in history can also be viewed as examples of the human will to survive and overcome great adversity. Mixed within the most terrible events in Canada's colonial history are words that represent the strength and resilience of the human spirit to overcome the most atrocious events. Together these words are an acknowledgement of history and how we must recognize that past trauma and atone for our mistakes if we are to move forward in a healthy and productive way.